

[TERMS AND CONDITIONS FOR DOCTOR'S REGISTRATION]

Welcome to the Pronuvia Website which is developed for doctors and health professionals who want to or do distribute our products.

Please read these Terms and Conditions carefully before using the www.pronuvia.com website. By accessing or using the Service you agree to be bound by these Terms. If you disagree with any part of the terms then you may not access the Service.

Products are provided by Pronuvia, Inc., located at 36-09 165 Street Flushing, NY 11358 ("COMPANY") to you who are registered doctor or healthcare professional. ("YOU").

Doctor Relationship

Appointment of Participating Doctor. COMPANY appoints YOU during the term of this Agreement as COMPANY's non-exclusive authorized participating doctor to treat YOUR Patients under your responsibility with the PRODUCTS provided by COMPANY ("PRODUCTS").

Relationship of Parties. YOU shall conduct its business in the purchase and resale of the PRODUCTS as a principal for its own account, at its own expense and risk. This Agreement does not in any way create the relationship of principal and agent, or any similar relationship, between COMPANY and YOU. YOU agree not to act or represent itself directly or by implication as COMPANY's agent and not to attempt to create any obligation, or make any representation, on COMPANY's behalf or in its name.

The Scope of Practice. We ask approved doctors and health practitioners to limit the use of SAC (Sigma Anti-bonding Calcium) therapy within the legally allowed scope of the license in treating patients.

i.e. For nutritionists, SAC therapy can be utilized to treat ionic calcium deficiency, to restore calcium homeostasis, to boost the immune system, to balance the body pH, and for other general calcium-related health issues from a nutritional therapy point of view.

Purchase, Payment, and Commission

Sale and Purchase. COMPANY agrees to sell to YOU, and YOU hereby agree to purchase from COMPANY.

Prescription to Patients. YOU shall prescribe PRODUCTS to appropriate patients. COMPANY will furnish YOU with the information of suggested retail price through the website and other information on PRODUCTS.

Purchase Orders. The sale by COMPANY to YOU of PRODUCTS shall be subject to the provisions of this Agreement and COMPANY's standard terms and conditions of sale. Any inconsistent provision of any purchase order placed by YOU shall be null and void unless expressly accepted by COMPANY in writing.

YOU shall order PRODUCTS pursuant to online purchase orders through the COMPANY's website submitted under YOUR unique ID identifying PRODUCTS ordered by part number and approved price with a desired delivery date. YOUR dispatch of purchase order(s) to COMPANY shall constitute a binding commitment from you. Upon receipt of such purchase order(s), COMPANY shall immediately issue a confirmation thereof to YOU.

COMPANY shall use commercially reasonable efforts to deliver PRODUCTS to YOU on the date requested but shall not be liable to YOU in the event that the date is not met. If COMPANY determines that it will not be able to ship PRODUCTS by the date requested by YOU, COMPANY shall notify YOU in writing of such delay.

Pricing. The prices of PRODUCTS sold to YOU by COMPANY shall be Retail Price and determined by COMPANY which will be listed on the website in effect at time of acceptance of YOUR order. YOU shall pay all license fees, sales, use, service use, occupation, personal property, and excise taxes and any other fees, assessments or taxes which may be assessed or levied by any national, state or local government and any departments and subdivisions thereof, against any of the PRODUCTS ordered by YOU and under YOUR direct or indirect control.

Payment and Delivery. Payment term shall be Cash in Advance/Prepayment. Delivery to YOU shall be Ex Works (EXW) any office or warehouse of COMPANY or such other point of origin or port of entry as COMPANY shall designate. COMPANY shall not thereafter be liable for transportation or for loss or damage in transit. In no event shall COMPANY be liable for consequential or special damages due to any cause. When YOU request to ship PRODUCTS directly to patients, COMPANY will dropship them to patients with same payment term and delivery term.

Inspection. YOU/Patients shall inspect all PRODUCTS promptly upon receipt thereof for conformance with PRODUCTS' specifications, to the extent determinable by reasonable inspection upon delivery. Any PRODUCTS not rejected by YOU/Patients within thirty (30) days of receipt shall be deemed accepted. COMPANY shall, at YOUR election and at COMPANY's expense, either repair, replace or refund for non-conforming PRODUCTS within thirty (30) days of COMPANY's receipt thereof.

Commission. For each order of COMPANY's products by YOU under this AGREEMENT, YOU shall be entitled to a commission based on the agreed commission rate. Commissions will be paid on

the price of products rendered which shall not include shipping, supplies, and other charges incidental to the performance of said products. When return of products or refund occurs, YOU shall return the paid commission to COMPANY. The Commissions will be paid out in the first week of each month. YOU shall pay the wire or stamp fees for the commission payout if the fee occurs.

W-9 Form. For tax purpose, we will ask you to fill out W-9 form with your social security number or TIN number. The application needs to be by you as you will be responsible for the therapy practice under your license and tax payment. Commission will not be paid unless you provide W-9 form with your signature.

Indemnification

Indemnification. YOU shall, at its expense, indemnify, defend and hold COMPANY harmless against all costs and liabilities incurred in connection with any third-party claim, action, suit, or proceeding arising out of any negligent or reckless act or omission or willful misconduct by YOU or any of its employees or agents or any improper use, negligent repair or alteration of a Product by YOU.

Product Claim. YOU shall not claim that PRODUCTS diagnose, treat, cure, or prevent any disease. No other claim shall be made other than what is appropriate and legal for dietary supplement.

Property Rights and Confidentiality

Property Rights. YOU acknowledge that COMPANY claims it owns all right, title, and interest in and to, or has all necessary rights to, PRODUCTS which are now or may hereafter be subject to this Agreement and all patents, trademarks, trade names, copyrights, and trade secrets originally made by COMPANY.

Confidentiality. YOU agree that YOU will not use in any way for YOUR own account or the account of any third party, nor disclose to any third party, any confidential information revealed to YOU by COMPANY. In the event of termination of this Agreement, there shall be no use or disclosure by YOU of any confidential information of COMPANY, and YOU shall not manufacture or have manufactured any devices, components or assemblies utilizing any of COMPANY's confidential information.

Termination

For Failure to Perform. If YOU do not order PRODUCTS to the satisfaction of COMPANY, does not exert its best efforts in COMPANY's sole opinion, or does not conduct its business in accordance with any requirements set forth herein to be performed by YOU, COMPANY may terminate this Agreement by giving YOU not less than thirty (30) days' prior notice of termination.

Additional Reasons for Termination. COMPANY may terminate this Agreement immediately by delivering to YOU or his representative written notice of such termination in the event of the happening of any of the following: (i) Any attempted transfer or assignment of this Agreement or any right or obligation hereunder or any sale, transfer, relinquishment, voluntary or involuntary, by operation of law or otherwise, of any interest in the direct or indirect ownership, control or active management of YOU without prior written approval of COMPANY; (ii) Any dispute, disagreement, or controversy between or among principals, partners, managers, officers or stockholders of YOU which, in the opinion of COMPANY, may adversely affect the ownership, operation, management, business or interest of YOU or COMPANY; (iii) The execution by YOU of an assignment for the benefit of creditors; the conviction of YOU or any principal officer or manager of YOU of any crimes which in the opinion of COMPANY may adversely affect the ownership, operation, management, business or interest of YOU or COMPANY; (iv) Failure of YOU to pay when due any indebtedness owing by YOU to COMPANY, unless expressly waived in writing by COMPANY; (v) The change of COMPANY policy.

Changes

We may modify these terms or any additional terms from time to time. If the changes are significant, we will provide a more prominent notice.

Contact Us

If you have any questions about these Terms, please contact us at pronuvia@gmail.com.

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of the link may not be such as to damage or dilute the goodwill associated with Pronuvia's names and trademarks; (iii) the link must "point" to the home page (e.g. www.Pronuvia.com) and not to other pages within the website; (iv) the appearance, position and other attributes of the link may not create the false appearance that your organization or entity is sponsored by, affiliated with or associated with Pronuvia; (v) when selected by a user, the link must display the website on full screen and not within a "frame" on the linking website; and (vi) Pronuvia reserves the right to revoke its consent to the link at any time and in its sole discretion.

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If any provision of these Terms and Conditions of Use is held invalid or unenforceable by any court of competent jurisdiction, the other provisions of these Terms and Conditions of Use shall remain in full force and effect. Any provision of these Terms and Conditions of Use held invalid or unenforceable only in part or degree will remain in full force and effect to the extent not held invalid or unenforceable. The parties further agree to replace such invalid or unenforceable provision of these Terms and Conditions of Use with a valid and enforceable provision that will achieve, to the extent possible, the economic, business and other purposes of such invalid or unenforceable provision.

VIOLATIONS AND ADDITIONAL POLICIES

Pronuvia reserves the right to seek all remedies available at law and in equity for violations of the rules and regulations set forth in this website, including the right to block access from a particular Internet address to the website.

QUESTIONS

If you have any questions about these Terms and Conditions of Use, please contact the relevant individual listed in the Contact Us section of this website.